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August 31, 2026

VIA ELECTRONIC MAIL ONLY

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Attorneys for Defendant United Parcel Service, Inc.

Re: **Settlement Demand as to United Parcel Service, Inc.**
Newanforbi v. United Parcel Service, Inc. — USDC, E.D. Cal. No. 2:26-cv-02847-DAD-CKD
Unlawful Use of California Sex Offender Registry Information for Employment (Pen. Code, § 290.46, subd. (j)(2)(E))
First Advantage Report, Lathrop Hub (CALAH) | **Demand: $250,000.00**

Dear Ms. Mott and Ms. Daskas:

I am writing because your motion changed the value of this case, and not in UPS's favor. This demand supersedes my July 12, 2026 pre-filing figure of $85,000.00, which is withdrawn.

I. WHERE THE CASE STANDS

The Complaint was filed July 15, 2026 in San Joaquin County Superior Court and served on UPS July 22, 2026 through the Sacramento County Sheriff. UPS removed on August 20, 2026. On August 26, 2026 UPS filed its Rule 12(b)(6) motion (ECF No. 7), noticed for hearing October 5, 2026 at 1:30 p.m. before Judge Drozd. My opposition is on file as Dkt. 10. My window to amend once as of right under Federal Rule of Civil Procedure 15(a)(1)(B) runs

through September 16, 2026, and arguably to September 19 with the three days Rule 6(d) adds for service by mail.

II. WHAT UPS FILED AS EXHIBIT A

UPS attached the First Advantage report to its motion and asked the Court to treat it as part of the Complaint under *United States v. Ritchie*, 342 F.3d 903, 908 (9th Cir. 2003). I have no objection. It is the single most important document in this case, and until August 26 I did not have it. Here is what it says.

- **Consumer:** BRENDAN NGWANFORBI. **Client:** UNITED PARCEL SERVICE. **Position:** Loader/Unloader — Hub / US — LATHROP HUB (CALAH). Ordered July 17, 2024; completed July 18, 2024.
- **Social Security Verification —** Pass.
- **First Advantage National Criminal File Plus (Stockton, San Joaquin, CA) — Eligible / No Record Found.**
- **National Sex Offender Registry —** Decisional. **National Sex Offender Registry Search, Department of Justice Web Site —** Decisional.
- **Overall score, July 19, 2024:** "BASED ON YOUR CRITERIA, THE OVERALL CASE SCORE IS INELIGIBLE," adjudicated by the Centralized Adjudication Team.

And at page 6, in the detail for the only component that produced a record:

> **Search Results: Record Found**
> **Search Type: NATIONAL SEX OFFENDER REGISTRY SEARCH-DEPT OF JUSTICE**
> **SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY**
> **SENTENCE: REGISTERED SEX OFFENDER**

III. THE MOTION IS CONTRADICTED BY ITS OWN EXHIBIT

UPS's brief, at page 4, tells the Court this:

> "There is not a single reference to any California based sex offender registry included in the background check UPS obtained."

UPS's Exhibit A, at page 6, says this:

> "SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY"

Those two sentences were filed together, on the same day, over the same signature. I do not assume bad faith — I expect the brief was drafted from the summary pages and not from page 6. But the consequence is the same either way. UPS asked the Court to incorporate that document by reference. Having done so, UPS is bound by what it says, and the Court will read page 6 along with page 4.

IV. THE EXHIBIT ALSO SUPPLIES CAUSATION

Ordinarily the hardest thing for a plaintiff in a case like this is proving that the registry entry, rather than something else, produced the denial. Exhibit A settles it arithmetically. The criminal-file search — the search that would have surfaced a conviction — returned **No Record Found** and scored **Eligible**. The Social Security verification passed. The only components scored **Decisional** were the two sex-offender-registry searches, and the only record either returned is sourced, in UPS's own document, to the California Sex Offender Registry. The overall result is INELIGIBLE. Remove the registry hit and there is nothing in that report that disqualifies anyone.

UPS states at page 2 of its brief that it "does not dispute the fact that it used information derived from Plaintiff's criminal background check when it made the decision to not hire him." Use is therefore conceded. What remains is what was used, and Exhibit A answers that.

V. THE SECTION 432.7 ARGUMENT CANNOT SURVIVE ITS OWN REPORT

UPS's fallback is that Penal Code section 290.46, subdivision (j)(3), preserves Labor Code section 432.7, and that subdivision (n) of that section permits an employer to "conduct criminal background checks for employment purposes or to restrict employment based on criminal history." The argument fails on UPS's own exhibit for a simple reason: **the criminal-history search returned no criminal history.** There was no conviction record before the adjudicator. A savings clause for decisions made on criminal history cannot save a decision that no criminal history supported.

The brief tries to bridge that gap by arguing that because I allege registry status, I "impliedly admit" a conviction. That asks the Court to infer, from the pleading, a conviction record that UPS's own report searched for and did not find. Registry status and a reportable conviction are not the same thing, and section 290.46, subdivision (j)(2)(E), draws exactly that distinction. It bars the use of registry information for employment categorically, whatever the underlying history, and no enumerated exception reaches a hub loader position.

VI. THE ADVERSE-ACTION SEQUENCE, AND WHAT I CAN STILL ADD

The dates in UPS's own materials also raise a federal claim that is not yet in the Complaint. The adjudication to INELIGIBLE is stamped **July 19, 2024**. The pre-adverse action notice reached me on **July 22, 2024 at 9:57 a.m.**, followed by reminders and a final adverse action notice on **July 31, 2024 at 9:57 a.m.** If the decision was scored on the 19th, the notice that arrived on the 22nd did not precede it, and 15 U.S.C. section 1681b(b)(3)(A) requires the report and a summary of rights to be provided *before* the adverse action is taken. That claim now sits natively in this Court, and sections 1681n and 1681o carry fee shifting.

I raise it here rather than in a pleading because I would rather resolve this case than expand it. But I want to be straightforward about the posture: my Rule 15(a)(1)(B) window is open. An amended complaint filed within it would moot ECF No. 7 in its entirety, and UPS would have paid for a motion that never gets decided. I would prefer to spend the next two weeks talking to you instead of drafting that amendment.

VII. THE DEMAND

Settlement payment: $250,000.00 (Two Hundred Fifty Thousand U.S. Dollars), inclusive of all damages, statutory penalties, costs, and fees asserted against UPS in this action.

- Payable by check or electronic transfer; payee details to follow upon acceptance.
- Written confirmation that UPS has instructed its background-screening vendors and its adjudication personnel that sex-offender-registry information is not to be used, directly or indirectly, as a basis for any employment decision on a California position, and that a Decisional or ineligible score may not rest on a registry component alone.
- Correction of UPS's records to reflect that I am eligible for hire, and a commitment that any future inquiry about this application will be answered with application dates only.
- Confidentiality of the settlement amount only. The fact of settlement and the non-monetary terms may be disclosed. I will not agree to a non-disparagement clause, and I will not sign a release broader than the claims arising from the 2024 application and screening.
- The release runs to United Parcel Service, Inc. and its officers, employees, and affiliates. It does not extend to First Advantage, and my claims against the reporting agency are expressly preserved.

VIII. HOW I GET TO THE NUMBER

I am using UPS's arithmetic, not mine. In its notice of removal UPS valued this position at **$60,144.00** — $21.00 per hour, 16 hours per week, 179 weeks. I accept that figure for present purposes.

- **Penal Code section 290.46, subdivision (j)(4)(A)** allows actual damages, plus an additional amount up to three times actual damages and not less than $250, plus attorney's fees, plus either exemplary damages or a civil penalty capped at $25,000. On UPS's own $60,144 figure, that count alone models to roughly $240,576 before fees and before any penalty or exemplary award.
- **ICRAA, Civil Code section 1786.50:** actual damages or $10,000, whichever is greater, plus costs and fees, and punitive damages for a grossly negligent or willful violation.
- **Invasion of privacy and Business and Professions Code section 17200:** general damages, restitution under section 17203, and injunctive relief reaching the adjudication practice itself.
- **Emotional distress.** This is one of several occasions on which a registry-keyed screening has cost me a position, and the cumulative effect is a substantial part of the harm.
- **Punitive exposure under Civil Code section 3294**, which turns in part on a defendant's financial condition.

$250,000.00 is therefore not an aspirational number, and I am not going to pretend it is an opening bid pitched high so it can be negotiated down. It is below what the statute permits on UPS's own valuation of the job. I will still listen to a serious counter-offer, and I would rather settle than try this case. But I am not going to move far from a figure that the arithmetic supports.

IX. RESPONSE

Please respond in writing to bnn.cdl@gmail.com on or before **5:00 p.m. Pacific Time on September 14, 2026**. I have chosen that date deliberately: it falls two days before my Rule 15(a)(1)(B) window closes, which leaves me time to amend if we have not reached an understanding, and it leaves UPS three weeks before the October 5 hearing. I am available by telephone at any time, and I am willing to consider an early settlement conference before Magistrate Judge Delaney if that would help.

Settlement discussions do not extend any deadline, and nothing in this letter withdraws or modifies my opposition at Dkt. 10.

X. PROTECTION AND RESERVATION OF RIGHTS

This letter is offered in compromise of a disputed claim and is inadmissible to prove liability under Evidence Code section 1152 and Federal Rule of Evidence 408. Nothing in it limits my right to introduce the underlying documentary evidence, including Exhibit A, at any stage of

this case. Nothing in it waives, releases, or limits any claim, right, or remedy, all of which are expressly reserved. This letter is not an offer to settle for any amount less than that stated, nor an admission of fact, law, or comparative fault.

I look forward to hearing from you.

Very truly yours,



Brendan Ngehsi Newanforbi
Plaintiff, In Pro Per

Method of delivery: Electronic mail only.
cc (by e-mail): vmott@martensonlaw.com; adaskas@martensonlaw.com; file (Newanforbi v. United Parcel Service, Inc., E.D. Cal. No. 2:26-cv-02847-DAD-CKD)